

ATOMiK — Legal & Formation Summary

ATOMiK · State-Aware Compute Architecture · Pre-Seed · May 2026

CONFIDENTIAL — DATA ROOM DOCUMENT — NOT FOR PUBLIC DISTRIBUTION

Last updated: May 2026. Requires counsel review before investor distribution.

Current Entity Status

Current operating entity per internal data-room record: Rockwell Industries, LLC, California LLC, active. EIN/address details are intentionally kept out of public send materials.

Intended venture-financing path: Delaware C-Corp conversion or formation path before institutional close, pending counsel.

Investor-safe wording: current entity and IP records exist, but final VC-ready corporate structure, cap table, and close documents require counsel review.

Intellectual Property

Provisional patent filed — see data room 03_intellectual_property for filing details.

Patent conversion funded in pre-seed budget (\$300K IP/legal allocation).

Current founder IP assignment template assigns to Rockwell Industries, LLC. Counsel must confirm whether assignment remains with the LLC, moves to a Delaware C-Corp, or is handled through conversion/assignment chain before close.

Do not state that final post-close IP assignment is complete until counsel confirms it.

Capitalization

See ATOMiK_Financial_Model.xlsx — Cap Table Draft sheet.

Formal cap table requires incorporation/conversion records, founder stock issuance or equivalent conversion records, option-pool decision, and counsel-reviewed financing documents.

Pre-seed instrument currently planned: SAFE, with final structure pending CFO/counsel. Valuation cap, discount, pro-rata rights, side letters, and close mechanics require CFO/counsel approval.

Employment & Contractors

Current status for investor materials: founder-led, with first hires/fractional roles planned after financing. Any contractor/advisor arrangement should be documented before being presented as part of the company team or cap table.

Recommended before close: founder employment/consulting status reviewed by counsel, consulting agreements for any contractors, and IP assignment for all contributors.

Before-Close Checklist

Document / Gate	Status
Delaware C-Corp conversion or formation plan	PENDING COUNSEL
Founder stock issuance / conversion-equivalent records	PENDING COUNSEL
Founder IP assignment into correct post-close entity	PENDING COUNSEL
SAFE template and side letters	PENDING CFO/COUNSEL
Cap table setup and option-pool decision	PENDING CFO/COUNSEL
Prior obligations / advisor promises / contractor rights check	PENDING COUNSEL
Provisional patent filing	FILED / SEE IP DATA ROOM
Patent conversion plan	FUNDED IN PRE-SEED PLAN